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Provision of May 17, 2023

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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Dr. Claudio Filippi, Deputy Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016, concerning

the protection of natural persons with regard to

the processing of personal data, as well as the free

movement of such data and repealing Directive

95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data

(legislative decree June 30, 2003, n. 196), as

amended by legislative decree August 10, 2018, n. 101, containing

provisions for the adaptation of the national

legal system to the aforementioned Regulation (hereinafter

"Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Deputy Secretary

General pursuant to Article 15 of the Guarantor's

Regulation n. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISE

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

Since 2012, the Guarantor has received

numerous requests for intervention (about 50 in the first year alone) regarding the unauthorized

publication of personal data (name, address,

phone number) on the website www.trovanumeri.com.

According to reports, in some cases the

publication also involved personal data of individuals who had particular needs for

confidentiality regarding their phone number and home address: some complainants had indeed

represented that they were holders of reserved lines, i.e., not published in the general telephone

directory

(ETG), highlighting that, for reasons related

to their professional activity, the dissemination of

personal contact details constituted a significant risk factor for their own safety and that of their

family.

The requests received, in addition to the publication

having occurred without any consent, complained of

the absolute lack of indications and contact details to

address the data controller, as well as

the impossibility of obtaining the deletion of the data

due to the malfunctioning of the form dedicated to

deletion requests, the only tool made available as a communication channel and accessible via the “contacts” link at the bottom of the home page. In particular, the complainants have stated that they never authorized the inclusion of their data on such a site but rather learned of its existence only by chance - after finding their data among the results of online searches or after receiving unwanted contacts - and they also declared that they had attempted several times, in vain, to request its deletion through said form, specifying in some cases that the deletion procedure seemed inactive or interrupted before completion. In some earlier cases (2012), it was complained that the completion of the form required interaction in English (one complainant also attached a print screen showing the warning “Please write requests in English”) and often the data of the residential address was published along with the corresponding map from the Google Earth service. Some complainants have stated that they also sought the assistance of a lawyer or a consumer protection association to try to obtain the deletion of the data, without however achieving satisfaction. On the site and in the brief privacy notice published therein, there was (and still is) no indication (not even the legally required information) regarding the entity owning the site, therefore the identification of the data controller required lengthy investigations made even more burdensome by the fact that the servers on which this website was hosted were located outside the national territory (and often outside the European Union) and were changed with such frequency as to prevent obtaining useful information from foreign authorities and private entities consulted from time to time, notwithstanding the investigative difficulties related to the territorial incompetence of the Guarantor. Finally, given the presence on the website trovanumeri.com of numerous advertising banners for the Google AdSense service, a request was made to Google pursuant to Article 157 of the Code, in order to obtain information regarding the entity to which the earnings from the publication of the banners were attributed. On July 15, 2022, Google provided a response attaching the registration data for its AdSense service which referred to Mr. Fabio Giovanni Petta. From the documentation transmitted, it was found that this registration concerned the publication of advertising banners on the websites www.trovanumeri.com, www.inelenco.com, and www.chiediadanIELa.com (the latter site, upon preliminary verification by the Office, was found to be unreachable).

The Guarantor, on May 26, 2022, had already adopted a sanctioning and prohibition measure against Mr. Petta (in www.garanteprivacy.it, doc web n. 9780409) regarding processing analogous actions carried out through the website www.inelenco.com for which, even in this case, it was only possible to identify the holder after lengthy investigations. In this provision, the illegality of the processing was declared, and a ban was imposed “to collect, store, and publish personal data for the establishment and online dissemination of a general telephone directory whose data has not been taken from the d.b.u.”.

By note dated August 11, 2022, Mr. Fabio Petta was therefore informed of the initiation of the procedure, the contents of which are to be fully referenced, in consideration of the violations ascertained also with regard to the processing carried out through the website www.trovanumeri.com.

By note dated September 7, 2022, Mr. Petta, communicating that he had filed an appeal against the provision adopted by the Guarantor on May 26, 2022, submitted his observations regarding the contested matters, referring indiscriminately to both websites under his ownership (inelenco.com and trovanumeri.com). In this regard, Mr. Petta reiterated (without, however, proving it) that the forms for the request for removal of data present on these websites are functional and that any failure to delete may be due to malfunctions or errors caused by users. Furthermore, contesting the charges made by the Guarantor, he confirmed the legality of his activity which, according to him, is not different from other online services (which he listed). In particular, Mr. Petta specified that “The inElenco site is a search engine that scans the web, extracts data, and publishes it just like Google does. Moreover, it is also a review site. Users register and publish not only their data but also their photos, reviews, and business products, and they do so voluntarily by accepting the privacy conditions present, and they can request their deletion at any time through a form. The same applies to TrovaNumeri. Even assuming that my sites are telephone directories, which they are not, there is a specific case that can be used, I am talking about Pagine Bianche.”

Subsequent to the initiation of the procedure and even after the submission of defensive observations by Mr. Petta, complaints continued to be received by the Guarantor lamenting the presence of personal data within the site trovanumeri.com and the impossibility of identifying the holder.

On April 3, 2023, the Guarantor's Office accessed the site trovanumeri.com verifying that it was still reachable online and had not been modified. Similarly, the identifying information of the data controller continued to be omitted. The website inelenco.com continued to be published without information regarding the data controller (checks carried out ex officio on April 17, 2023). Screenshots of these accesses were obtained.

On April 5, 2023, the Guarantor's Office accessed the site trovanumeri.com to verify what Mr. Petta had stated regarding the functioning of the deletion procedure; in particular, using the information contained in some of the reports received, specific checks were made on the data of 8 reporters who had submitted requests to the Guarantor between 2012 and 2023. All were found to still be present on the site trovanumeri.com despite the absence of their data in the ETG (Pagine Bianche), confirming that these are reserved users. In three of these reports, it was highlighted that the confidentiality of the telephone number and/or the private residence address was necessary for reasons of personal or family safety: these reports were sent to the Guarantor on August 10, 2020, January 31, 2018, and September 4, 2012, and referred, as mentioned, to data still published on the site trovanumeri.com. One reporter, on July 28, 2020, complained about the unauthorized publication of his data on the site trovanumeri.com – despite being reserved in the directory since 2016 – and attached screenshots certifying the removal request sent via the cancellation form on June 25, 2020 (with confirmation of removal within 48 hours) as well as the screenshot of his data still present on the site as of July 23, 2020. From the access made on April 5, 2023, by the Guarantor's Office, the data still appears on trovanumeri.com, while it is not present in the ETG.

A verification of the functioning of the cancellation mechanism was also carried out by the Guarantor's

Office, resulting, however, in failure as shown in the image reproduced alongside.

Also on April 5, 2023, the Office used the functionality “add number to telephone directory for free” by entering fictitious data. Screenshots were also taken of these verifications. It was observed that it was possible to enter the data without any control being activated regarding the actual will of the potential interested party (no verification and confirmation message). Moreover, Mr. Petta himself, in the defensive memorandum of September 7, 2022, confirmed that he had not provided any identity verification mechanism on his site. Furthermore, at the bottom of the form to be filled out, there are three pre-selected consent clauses regarding: acceptance of the general conditions and privacy notice/ consent to the online publication of data/ consent to reverse search of data. Deselecting the flags was not found to be possible.

On April 6, 2023, the Office accessed the website trovanumeri.com and found, by searching with the words “guarantee protection,” the personal data sheet related to the Guarantor Authority in which an outdated address was reported (dating back to 2018) and an incorrect civic number (Piazza di Monte Citorio 115). It has also been verified that the search for the name was allowed starting from just the phone number (reverse search functionality).

2. VIOLATIONS IDENTIFIED

With reference to the factual profiles highlighted above, also based on the statements for which the declarant is responsible pursuant to Article 168 of the Code, it is believed that the responses provided by Mr. Petta – consisting of completely generic and undocumented arguments and irrelevant comparisons with other providers – do not allow for overcoming the objections made by the Office during the contestation of the violations, which are therefore confirmed as follows.

2.1. Dissemination of personal data in the absence of a suitable legal basis and processing in violation of the law

The numerous reports received and the examination of the content of the site trovanumeri.com outline a processing consisting of the de facto creation of a telephone directory in contrast with current regulations, with the consequent dissemination of personal data on the Internet in the absence of a suitable legal basis. The effects of such unlawful processing are further amplified by the fact that the data published in this way are indexed by the Google search engine and further disseminated; a portion of the source code of the site is also made available with the invitation to other users to share it from their own websites (see links “tools” and “trovanumeri on your site”).

Regarding the creation of telephone directories, reference is made to the special regulation provided for in Article 129 of the Code, adopted in implementation of Article 12 of Community Directive No. 2002/58/EC, which is implemented, as provided for by the provision itself, by specific decisions of the Guarantor and Agcom(1). In particular, the creation of telephone directories is permitted only in the manner described by Agcom Resolution No. 36/02/CONS as well as by the subsequent Agcom Resolution 180/02/CONS, which established the methods and rules for the implementation of the general telephone directory service(2). The Guarantor, with the provision of July 15, 2004 (in www.garanteprivacy.it, doc web no. 1032381) regarding "alphabetical" telephone directories of the universal service, clarified that "only the formation, distribution, and dissemination of directories, in any form realized, based on consultation and access" to the d.b.u.(3) is permitted (as also stated in the provision of April 7, 2011, doc. web no. 1810351 and the provision of January 14, 2016, doc. web no. 6053915) and that, for the inclusion of personal data in such directories, the express, free, specific, informed, and documented written consent of the contracting parties (natural and legal persons) is necessary.

Consequently, it is not legitimate to form a telephone directory, online or even on paper, with data that is not taken from the d.b.u. since only this source, being fed and updated directly by the operators offering telephone services, is the only one capable of guaranteeing the correctness and updating of the data in addition to documenting the will of the interested parties to make them public. This approach allows for the implementation of the requirement for the consent of the interested party, whose will, in the Italian legal system, can only be expressed or revoked by addressing their telephone

operator. The principle has recently been reiterated by the European Court of Justice, which stated the following(4): “the ‘consent [...] of the subscriber of a telecommunications service provider is required for the personal data of that subscriber to be included in telephone directories and in publicly accessible telephone directory consultation services published by providers other than that operator.”

Similarly, the so-called "reverse search" function, i.e., the search for the identities of the contracting parties based on their phone number, is not permitted without having previously obtained their free and specific consent, as well as informed (see provision of July 15, 2004, Annex I, point 4.2.1), consistently with what has been asserted at the community level by the Group under Article 29(5).

From the investigations conducted, it has emerged that the website trovanumeri.com also makes reverse search available and that it is not possible to express free and specific consent for this functionality since, as described above, the consent checkbox is pre-selected and unmodifiable.

In the note of September 7, 2022, Mr. Petta denies that his sites create telephone directories and, according to him, if they were considered directories, they would be comparable to the service provided by Italiaonline S.p.A. through the website www.paginebianche.it, which, according to Petta, operates in the same manner. Furthermore, he added that the site trovanumeri.com is a search engine and a review site where users, by registering, can publish photos and share comments. However, from the examination of the website, it does not seem possible to carry out this type of operation, and the only possible function appears to be the insertion of personal data without any verification of the actual will of the interested party, as there is no control (for example, via confirmation email); at the end of the procedure, there is no creation of a personal area for the user, nor is there even the option to choose authentication credentials, therefore it is unclear how the use of the site trovanumeri.com could allow for the publication of photos and reviews.

Despite Mr. Petta asserting in his defenses that the website is not a telephone directory, it is noted that it is precisely the site itself that presents

****2.2 Failure to Respect the Rights of Data Subjects, Inadequacy of Information, and Absence of Safeguards****

The requests received have complained, in addition to the unauthorized dissemination of data, about the impossibility of exercising the right to erasure – as well as potentially any other rights.

As such, since, as can be seen from the screen that follows, reference is made precisely to the insertion of "subscribers in the telephone directory" with the obligation, at the conclusion of the procedure, to consent also to the reverse search of the data. Furthermore, in the notice published on the website, referring specifically to the regulations on directories, it states that "Subscribers who, prior to the entry into force of the new regulations on telephone directories and, therefore, before August 1, 2005, have not subsequently expressed a different intention (by requesting the deletion of data through a specific form), will continue to be published on the TrovaNumeri website as before," and, further on, even boasting of having the necessary legal authorization, it adds that "The processing to which the requested or acquired personal data will be subjected is directed exclusively to the fulfillment by TrovaNumeri of the service and related activities to which TrovaNumeri is authorized pursuant to current legal provisions. (Provide a telephone directory)" (text reported as it is viewable on the site).

It should also be noted that Mr. Petta has stated that the data present on his websites are collected following the autonomous input of users or through web scraping, that is, through an automated blanket search procedure on the web. Moreover, even in the brief notice published on the site trovanumeri.com, it states that "Trovanumeri is a search engine. The data contained in our archive are extracted by a spider. The Trovanumeri spider scans thousands of websites daily."

Given that the Guarantor has already expressed itself regarding the illegality of using data collected through web scraping for purposes incompatible with the initial ones, these statements provide evidence that the data – which certainly have not been extracted from the d.b.u. – have been acquired and processed without any consent from the data subjects and without any other legal basis being invoked.

Regarding the hypothesis of autonomous input of data at the request of users, which has never been documented, it should be remembered that all complainants have reported the presence of their personal data on the website without having given any authorization and even without knowing that their data were disseminated online.

Furthermore, it is unclear what benefit a data subject should derive from being included in a generic telephone directory – which also reports incorrect or outdated data – given that those who have visibility needs can already have them satisfied by the official telephone directories, the only ones authorized by law based on the aforementioned premises.

On the contrary, the economic interest of the data controller in carrying out such processing appears more evident due to the possibility of publishing advertising banners on the pages of the website, considering that the value of the banners is related to the number of visits obtained by the site.

And in any case, even if we were to absurdly admit the existence of an initial consent, such a legal basis would certainly not be invocable after the deletion requests submitted by the data subjects.

Moreover, given the lack of any control procedure, with the setup described by Mr. Petta, it would be possible for anyone to input contact data of an unaware third party, including links to social profiles, with potential risks for the privacy and even for the safety of individuals.

Finally, regarding the alleged analogy between the site trovanumeri.com and the service offered by the website www.paginebianche.it, it is deemed useful to clarify that the Pagine Bianche service – which primarily makes available the contact data and identifying information of the holder – publishes the ETG within the framework of the aforementioned regulatory framework and, as found in the privacy notice of that site, "publishes the data relating to subscribers to fixed and mobile telephony services, as they have been entered into the unique database by the individual telephone operators, in accordance with the provisions of the Authority for Communications Guarantees and the Privacy Guarantor. [...] the unique database, to which Italiaonline S.p.A. has access following a transfer contract signed with one of the authorized telephone operators, is fed, by order of the Authority for Communications Guarantees, by all fixed and mobile telephony service operators who have signed a specific memorandum of understanding, in accordance with the expressions of consent provided by each subscriber to their respective operators in response to the form prepared by them. [...] Italiaonline S.p.A., publisher of PAGINEBIANCHE.it, against whom the data subject can exercise the same rights in relation to the processing carried out by it, is not, however, authorized, for the aforementioned reason, to make any intervention on the data present in the unique database."

That said, considering that the processing is not supported by any legal basis and is carried out in violation of the law, it is believed that the described conduct constitutes a violation of the following articles of the Regulation: art. 5, par. 1, lett. a) and d); art. 5, par. 2; art. 6.

****Connected Right to Personal Data Protection****

- Since no identifying data of the data controller and no contact channel with it could be found on the site. In fact, there was (and still is) no information regarding the name and VAT number of the economic operator registered to the website, as also required by the current legislation on business (art. 35, paragraph 1, dPR October 26, 1972, no. 633 and art. 2250 c.c.).

According to Mr. Petta's arguments, the presence of the contact form was the only channel made available to data subjects to exercise their rights of deletion and rectification. However, this tool must be considered insufficient to guarantee data subjects the correct exercise of all rights provided by the Regulation, as it would only theoretically allow for the deletion and modification of data but would not be useful for requesting, for example, access to data or portability.

The same privacy notice, which is displayed in characters that make it difficult to read and, in some passages, is not very comprehensible, contains untrue information (e.g., regarding the presence of a legal authorization to create a telephone directory) and claims to comply with Canadian privacy laws since the servers are, as stated, located in Canada.

Furthermore, the data controller merely stated that the deletion procedures are operational without providing any documentary evidence in this regard. At the same time, there are numerous reports

(some described in point 1) that complain about the presence of data online despite attempts at deletion made through the only available tool, the online form, for which it has been demonstrated that to date, years later, the data is still present on trovanumeri.com despite being reserved in the ETG.

The same

Office of the Guarantor verified that, upon submission of a deletion request, an error message was returned.

That said, it is believed that the described conduct constitutes a violation of articles 12, paragraph 2, 15, 16, and 17 of the Regulation, as it has proven impossible for data subjects to know the origin of the data and the methods and purposes of processing, as well as to request the rectification of inaccurate data or deletion.

Moreover, considering the total inadequacy of the privacy notice published on the website, it is believed that the described conduct constitutes a violation of articles 12, paragraph 1, and 13 of the Regulation.

What has been described also constitutes a total lack of adequate technical and organizational measures to ensure that processing is carried out in compliance with the rules on personal data protection, and the only technical measure adopted (the "contact" form) has not been able to protect the rights of data subjects; for these reasons, it is believed that the violation of articles 24 and 25 of the Regulation is established.

****2.3 Non-compliance with the prohibition on processing****

With the aforementioned provision of May 26, 2022, a prohibition was imposed on Fabio Petta "to collect, store, and publish personal data for the establishment and online dissemination of a general telephone directory whose data has not been taken from the d.b.u." This corrective measure, deemed necessary due to the very serious violations detected and the harm caused to data subjects, was adopted following the verification conducted on the site inelenco.com but, given the deliberately broad formulation, must be clearly understood as a general prohibition directed at Mr. Petta to refrain from repeating the conduct by similar means in the absence of appropriate legal guarantees.

Only later was it established that the site trovanumeri.com was also linked to the same Petta since he operated in complete anonymity due to the precautions taken.

Therefore, in the initiation of the procedure notified on August 11, 2022, it was noted that, despite the prohibition imposed by the provision of May 26, 2022, the conduct had not ceased since the websites www.inelenco.com and www.trovanumeri.com were still active and continued to make numerous personal data available online. The non-compliance with the prohibition on processing imposed by the aforementioned provision was therefore contested.

Subsequently, on September 3, 2023, Mr. Petta's lawyer informed the Guarantor of the appeal filed with the Ordinary Court against the provision adopted on May 26, 2022, along with a request for suspension, for which the court deemed the prerequisites for ordering the precautionary measure to be lacking, deferring the examination of the appeal to a specific hearing.

Therefore, as the effects of the provision have not been suspended and the contested processing remains unchanged with serious harm to data subjects, the non-compliance with the provision adopted by the Guarantor on May 26, 2022 must be confirmed, which makes the sanction provided for by art. 83, paragraph 5, letter e) of the Regulation applicable.

****3. CONCLUSIONS AND CORRECTIVE MEASURES ADOPTED****

The processing carried out by Mr. Petta through the site trovanumeri.com presents, as seen, numerous and serious profiles of illegality, with the violation referred to in point 2.1 being particularly decisive among them. This, in fact, concerning the very premise of the processing, is to be considered absorbing and already sufficient to invalidate the entire processing, taking into account that any rectification of the illegality described in the subsequent points, which further aggravate the conduct, would not be sufficient to remedy the fact that the processing itself is carried out in the absence of an appropriate legal basis and, above all, in violation of the law.

It should indeed be remembered that the current regulatory framework (described above) does not

allow for the creation of generic telephone directories that are not extracted from the d.b.u. and that do not comply with the decisions adopted by the Garante and Agcom. Furthermore, even if one were to admit a different processing based solely on the consent of the data subjects – which has never been proven and would not be the only source of the data considering that the collection would occur, according to the statements made, through web scraping – the unlawfulness of the conduct would nonetheless not be overcome given the serious violations found in addition to the total anonymity of the data controller.

A significant prejudice has materialized in the cases reported to the Garante since, as seen, some data subjects – highlighting the "confidential" nature of their telephone numbers – have complained of serious repercussions related to the dissemination of their data online, with risks also to their safety; in some cases, the reporters have stated that they were contacted by individuals who should not have known their contact details, and one reporter indicated that they had received threatening phone calls even at night, all due to the unlawful dissemination of personal data.

Not to mention that such conduct can also fuel databases created unlawfully for telemarketing activities, a possibility that has already materialized in a case recently addressed by the Garante, which sanctioned a real estate agency for making promotional calls without consent using data extracted from the site trovanumeri.com (see provision of February 10, 2022, web document no. 9756869).

Having said that, having established the violation of Article 5, paragraph 1, letters a) and d); of Article 5, paragraph 2; of Article 6; of Article 12, paragraphs 1 and 2; of Articles 13, 15, 16, 17, 24, 25 of the Regulation, and confirmed the non-compliance with the provision of May 26, 2022, it is necessary, pursuant to Article 58, paragraph 2, letter f), to impose on the data controller the prohibition of collecting, further storing, and publishing personal data for the establishment and online dissemination of a telephone directory whose data has not been extracted from the d.b.u.

Moreover, considering that the data controller has not deemed it necessary to intervene in any way to mitigate the prejudice even after the observations made by the Authority, due to the seriousness of the conduct and with deterrent intent, it is believed that the conditions exist for the application of an administrative pecuniary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

4. ORDER OF INJUNCTION FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

Based on what is represented in point 2, various provisions of the Regulation have been violated in relation to connected processing carried out by Petta, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same processing or to connected processing, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation with the consequent application of only the sanction provided for by Article 83, paragraph 5 of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, in setting the maximum penalty at the sum of 20 million euros or, for enterprises, at 4% of the worldwide annual turnover of the previous financial year where higher, specifies the methods of quantification of the aforementioned sanction, which must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1 of the Regulation), identifying, for this purpose, a series of elements, listed in paragraph 2, to be evaluated when quantifying the relative amount.

In compliance with this provision, in the case at hand, the following aggravating circumstances must be considered:

1. the seriousness of the violation due to the fact that the conduct is carried out in violation of the law and, in particular, in violation of what is provided for by the provision referred to in Article 129 of the Code and is likely to cause significant harm to the data subjects due to the dissemination on the

internet of personal contact data such as telephone numbers and residential addresses (Article 83, paragraph 2, letter a);

2. the high number of subjects whose data have been published considering that, according to what the data controller stated, the site trovanumeri.com would contain the data of 26 million users (Article 83, paragraph 2, letter a);

3. the duration of the violation since the conduct has persisted for several years: in the business register, the company has been registered since October 8, 2012, and reports to the Garante have been received continuously since 2012 (Article 83, paragraph 2, letter a);

4. the intentional nature of the conduct, as described in point 2, since the rules for the protection of personal data have been completely and deliberately ignored and have not been taken into account even after the intervention of the Garante, considering that the data controller has never made their identifying data available on the site and continues to omit them even now; moreover, the fact that the rules for the establishment of telephone directories were known to Petta is demonstrated by the fact that they were also mentioned in the privacy notice, even boasting of having a (non-existent) legal authorization, but in fact, they have been completely disregarded.

everything is willfully circumvented (art. 83, par. 2, lett. b);

5. the total absence of measures aimed at mitigating the damage for the affected parties, despite the objections raised by the Authority (art. 83, par. 2, lett. c);

6. the existence of similar violations, established by the provision of May 26, 2022, whose prescriptions have not been complied with (art. 83, par. 2, lett. e) and lett. i);

7. the total absence of corrective measures and the lack of cooperation with the Authority to remedy the contested violations (art. 83, par. 2, lett. f);

8. the manner in which the Authority became aware of the violations, having received dozens of reports and complaints due to the impossibility of identifying the data controller and obtaining respect for rights (art. 83, par. 2, lett. h).

As the only mitigating factor, it is deemed necessary to take into account the economic dimensions of the data controller, who qualifies as a small entrepreneur under art. 2083 of the Civil Code, also considering the sanction of 50,000 euros already imposed by the provision of May 26, 2022.

In quantifying the sanction, the above-described elements were taken into account as established by the investigative activity in the absence of economic information, as there is no balance sheet in the business register and no information was provided in this regard by Petta, who was expressly requested to do so in the notice of initiation of the procedure.

Therefore, it is believed that, based on the entirety of the elements mentioned above, due to the seriousness and number of the violations found and especially the fact that the processing was carried out and repeated in violation of the law, an administrative sanction of payment of an amount equal to 60,000.00 euros (sixty thousand/00), equal to 0.3% of the maximum penalty of 20 million euros, should be applied to Mr. Fabio Giovanni Petta, and, due to the aggravating elements identified, the additional sanction of full publication of this provision on the Authority's website as provided for by art. 166, par. 7 of the Code and by art. 16 of the Authority's regulation no. 1/2019.

Finally, it is believed that the conditions of art. 17 of Regulation no. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met for the annotation of the violations identified here in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation.

It is reminded that pursuant to art. 170 of the Code, anyone who, being obliged, does not comply with this prohibition provision is punished with imprisonment from three months to two years and that, in case of non-compliance with the same provision, the sanction referred to in art. 83, par. 5, lett. e), of the Regulation is also applied in an administrative context.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares the processing described in the terms of the motivation by Fabio Giovanni Petta, based in XX, XX, VAT no. XX, tax code XX, unlawful, and

consequently pursuant to art. 58, par. 2, lett. f), of the Regulation, prohibits the collection, storage, and publication of personal data for the establishment and online dissemination of a general telephone directory whose data has not been taken from the d.b.u.;

ORDERS

Mr. Fabio Giovanni Petta, based in XX, XX, VAT no. XX, tax code XX, to pay the sum of 60,000.00 euros (sixty thousand/00) as an administrative pecuniary sanction for the violations indicated in the motivation, representing that the offender, pursuant to art. 166, par. 8, of the Code has the right to settle the dispute, by complying with the prescribed measures and paying, within thirty days, an amount equal to half of the imposed sanction.

REQUIRES

Mr. Fabio Giovanni Petta, in case of failure to settle the dispute pursuant to art. 166, par. 8, of the Code, to pay the sum of 60,000.00 euros (sixty thousand/00), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of law no. 689/1981.

DISPOSES

- a) pursuant to art. 17 of the Authority's Regulation no. 1/2019, the annotation in the internal register of the Authority, provided for by art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted;
- b) pursuant to art. 166, par. 7, of the Code, the full publication of this provision on the Authority's website.

Pursuant to art. 78 of Regulation (EU) 2016/679, as well as arts. 152 of the Code and 10 of Legislative Decree of September 1, 2011, no. 150, an appeal against this provision may be brought before the ordinary judicial authority, with a petition filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, May 17, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE DEPUTY SECRETARY GENERAL

Filippi

- 1) In this regard, please refer to the joint statement adopted on June 13, 2022, by the two Authorities following the procedure initiated to establish the correct methods for implementation and inclusion in the general telephone directory (available at www.garanteprivacy.it, doc web n. 45979).
- 2) Also refer to the recommendations provided by the Guarantor in the decision of May 23, 2002 (doc web n. 1032397).
- 3) The d.b.u. is the unique electronic archive that collects the telephone numbers and identifying data of customers from all national fixed and mobile telephony operators and is used for the formation of telephone directories. It was established by Agcom resolutions no. 36/02/CONS and no. 180/02/CONS and has been operational since August 1, 2005.
- 4) Judgment of the Court of Justice of the European Union of October 22, 2022, case C-129/21.
- 5) See WP29 opinion no. 5/2000 of July 13, 2000 (available at the link <https://www.garanteprivacy.it/documents/10160/10704/1610173>)
- 6) See decision of January 14, 2016 (doc web n. 6053915) and decision of February 10, 2022 (doc web n. 9751362).